HEADNOTE

"1. When interpreting a patent claim, the person skilled in the art does not apply a philological understanding, but determines the technical meaning of the terms used with the aid of the description and the drawings. From the function of the individual features in the context of the patent claim as a whole, it must be deduced which technical function these features actually have individually and as a whole. The patent description may represent a patent´s own lexicon.

2. A claimed invention is to be considered the "same invention" as meant in Article 87 EPC (priority right) if the skilled person can derive the subject-matter of the claim directly and unambiguously, using common general knowledge, from the previous application as a whole.

3. The assessment of inventive step starts from a realistic starting point in the prior art. There can be several realistic starting points. It is not necessary to identify the "most promising" starting point.

4. In general, a claimed solution is obvious if the skilled person would be motivated to consider the claimed solution and would implement it as a next step in developing the prior art. It may be relevant whether the skilled person would have expected any particular difficulties in taking any next step(s). The absence of a reasonable expectation of success (or more in general: non-obviousness) does not follow from the mere fact that other ways of solving the underlying problem are also suggested in the prior art and/or (would) have been pursued by others. The decisive question that has to be answered is whether the claimed solution is non-obvious.

5. For assessing inventive step it is not the question whether the skilled person would inevitably arrive at the same result (falling within the scope of the claim or not). Rather, it is sufficient (but also necessary) for denying inventive step that the skilled person would without inventive contribution arrive at a result which is covered by a claim.

6. A technical effect or advantage achieved by the claimed subject matter compared to the prior art may be an indication for inventive step. A feature

> *that is selected in an arbitrary way out of several possibilities cannot generally contribute to inventive step."*

COURT
Central Division in Munich

PROCEEDINGS
Counterclaim for revocation

PATENT
EP 3 666 797 B1

ANTIGEN BINDING PROTEINS TO PROPROTEIN CONVERTASE SUBTILISIN KEXIN TYPE 9 (PCSK9)

KEYWORDS
Revocation | claim interpretation | priority | inventive step | starting point | obviousness | inventive contribution | arbitrary selection out of several possibilities

SUMMARY
The Central Division in Munich ruled on a counterclaim for revocation concerning patent protection. The patent at issue relates to antigen binding proteins to proprotein convertase subtilisin kexin type 9, or PCSK9. According to the headnotes of the decision, claim interpretation requires the skilled person to determine technical meaning using the description and drawings. The technical function of individual features must be derived from their role within the claim as a whole. This means that a patent's description may establish its own specific lexicon. Furthermore, an invention qualifies as the same invention under Article 87 EPC if the skilled person can derive the claimed subject-matter directly and unambiguously from the prior application. Common general knowledge supports this derivation. Additionally, the assessment of inventive step must start from a realistic starting point in the prior art, and multiple realistic starting points may exist. The identification of the most promising starting point is not necessary for this analysis. In particular, a claimed solution lacks inventive step if the skilled person would be motivated to consider it. The skilled person must also be able to implement it as the next logical step in developing the prior art. Whether the skilled person would have expected particular difficulties may be relevant to this assessment. However, the mere existence of alternative solutions in the prior art or their pursuit by others does not establish non-obviousness. The decisive question remains whether the claimed solution itself is non-obvious. At the same time, inventive step does not require that the skilled person would inevitably arrive at the same result within the claim's scope. Rather, it suffices for denying inventive step that the skilled person would arrive at a result covered by the claim without inventive contribution. Finally, a technical effect or advantage over the prior art may indicate inventive step. An arbitrarily selected feature from multiple possibilities cannot generally contribute to inventive step.